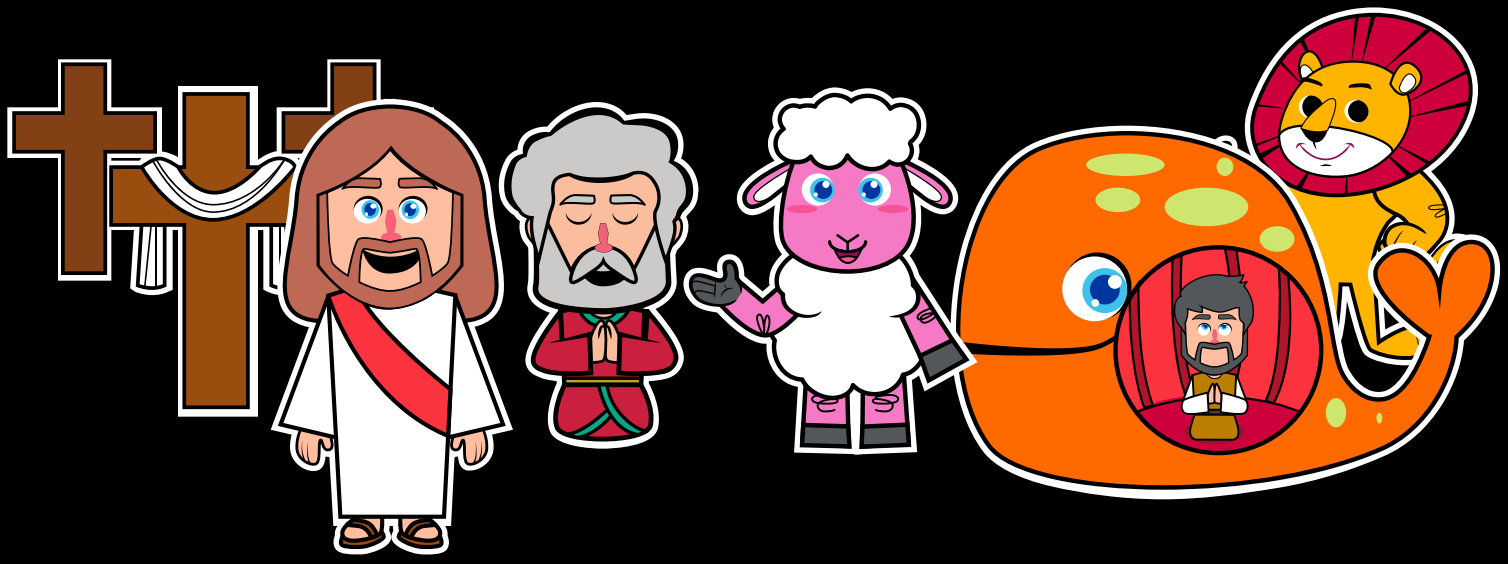
All arts work together for kids



Terms of Use

smart arts for kids

Welcome to Smart Arts for Kids digital designs.

Thank you so much for your support and interest in Smart Arts for Kids Digital Clipart. Here you will find high quality graphics, clip art and so much more. New items are posted every week so be sure to check back regularly.

Please read the following Terms of Use carefully.

All documents have been uniquely created and designed by me. Purchasing this clip art set entitles you to one non-transferable single-user license. You may use these graphics for personal and/or commercial use. However, by purchasing, you agree to the following terms:

Regular License

You may use a purchased Item in a new End Product as long as the End Product meets the following requirements.

End Products must be significantly different than the original Item and require time, effort, and skill to produce. End Products must not be used or sold in a way that is directly competitive with the original Item you purchased. End Products must not redistribute the original Item to any third parties in a manner that allows for the extraction of the original Item.

NON-PROFIT/PERSONAL USE

You may use a purchased Item for personal or non-profit projects without credit as long as NO MONEY is made.

If you share your personal/non-profit project (ex: as a giveaway or freebie) on your personal/non-profit site, blog or social media all SmartArtsforKids artwork must be flattened, uneditable and unextractable. Require graphic credit be given to SmartArtsforKids including a URL that links back to (https://www.smartartsforkids.com/) within the description and on the same page as the item.

COMMERCIAL USE *CREDIT REQUIRED*:

You may use a purchased Item for unlimited commercial use but require graphic credit be given to Smart Arts for Kids including a URL that links back to (https://www.smartartsforkids.com/). The link should be placed on the same page as the product that is being sold or displayed.

EXAMPLE OF HOW TO DISPLAY CREDIT

graphics by Smart Arts for Kids, © www.smartartsforkids.com, clipart by Smart Arts for Kids, artwork by Smart Arts for Kids

COMMERCIAL USE *NO CREDIT REQUIRED*:

If you want purchased Item to use commercially (1000 copies sold or less) without giving credit to Smart Arts for Kids then you have the option to purchase NO credit license. There is an extra fee for this license **($20 USD for each individual SET)**. So you need to purchase clipart as well as a no credit license for $20 USD.

Things you can do with the Item

MODIFY

You may modify or manipulate the Item, or incorporate it into other content and make a derivative work from it. Smart Arts for Kids will retain all right, title, and ownership in the Item and the resulting derivative work is subject to the terms of this Standard License.

EMBROIDERY DIGITIZERS

You may use the item personally or commercially as long as the file is a digital embroidery file. You may not include any original item in your download.

DIGITAL PRODUCT DESIGNERS

You may use the item personally or commercially to create a digital printable project. Original Item must be flattened and enough of your own design must be added to make it a unique design. SIMPLE COLLAGE SHEETS are not ALLOWED. The project must be sold as flattened JPEG or PDF files. Do not sell the Original Item layered or on white backgrounds as printables. All other digital creations are allowed as long as graphics are flattened and enough of your design is added to make it a new original design.

DIGITAL (PRINTABLES)

You must add a background or images of your own project along with the item you purchased in order for it to be unextractable by the customer. Original Item must be flattened and enough of your own design must be added to make it a unique design. SIMPLE COLLAGE SHEETS are not ALLOWED. Do not sell the original item as layered files. The project must be sold as flattened JPEG or PDF files. You cannot simply paste the images on a white page as this allows customers to simply copy and paste in any program and have access to the original item. This also applies to stickers, party printables, planner accessories, and coloring pages.

MOBILE APPS

You may use the item purchased for personal or commercial use, you must credit with a link or purchase the No Credit License without giving credit to Smart Arts for Kids shop. You must ensure that the item is not extractable. Item must be part of a project and not sold as is or be downloadable as an image.

CUTTING FILE DESIGNERS

You can use the item purchased to create LAYERED CUTTING FILES only that requires assembly after cutting. End Product cannot be simply converted to SVG or other cutting formats and sold as cutting files. SVG and PNG format files cannot be shared. Do not include the original item in your packs, you may use them in the preview but they must be flattened and unextractable.

TEACHERS, EDUCATORS

You can use the item purchased personally or commercially (TPT). but require item credit to Smart Arts For Kids as with a clickable link to (https://www.smartartsforkids.com/) inside your PDF document or wherever you display or sell your project. The project must be flattened, uneditable and unextractable. You cannot share my original items for free. If you do not wish to credit Smart Arts for Kids commercially just purchased the No Credit License at Smart Arts for Kids Shop.

Things you can't do with the Item

UNAUTHORIZED DUPLICATION

You may not publicly display the Item: (a) as a standalone file in any digital format on the internet; or (b) in any digital format without imposing technical or written restrictions to prevent the unauthorized use of the Item by third parties. You agree to take all commercially reasonable steps to prevent third parties from accessing and/or duplicating the Item. If you become aware of any unauthorized duplication of any Item please notify me via email at admin@smartartsforkids.com.

TRADEMARK

You may not register as a trademark the Item or the end product incorporating the Item – not even logos. If you use the Item to create a logo for yourself or a client, keep in mind that third parties can use the Item too, even in another logo.

ALTER/REDESIGN

You may not sublicense, resell, share, transfer, or otherwise redistribute the Item (e.g. as stock, in a tool or template, with source files, and/or not incorporated into an End Product) under any circumstances, not even for free.

BREACH THE TERMS

This license can be terminated if you breach it. If that happens, you must stop making copies of or distributing the End Product until you remove the Item from it.

No Credit License

If you purchase a No Credit License, the following terms apply:

This No Credit License allows you to use Items in any manner permitted under the Standard License, and pursuant to the obligations and restrictions therein; and

This license is for the small business/home base crafter to use with NO CREDIT given back to Smart Arts for Kids. This is a license for small commercial use and does not give the right to high volume commercial production, please see store policies.

This license is good for 1 (one) single clip art set

A new license needs to be purchased for each set you wish to use with no credit.

MISCELLANEOUS

Refunds and Exchanges

Due to the nature of the product, no refunds can be offered. Sometimes my emails get filtered by spam blockers or end up in what I like to call the electronic Bermuda triangle. If you do not receive your download just contact me @ jonevaristo@smartartsforkids.com and I will send it you ASAP.

Additional policies

Smart Arts for Kids retains ownership of the Item but grants you the license on these terms.

Smart Arts for Kids Design all rights reserved to all graphics and images.

Smart Arts for Kids shop reserves the right to modify the Terms of Use for this shop at any time without giving you prior notice. Your use of my shop after any such modifications is your agreement to follow the Terms of Use as modified.